

for life; but it was held by Lord Eldon, that the insertion of the power in that mode was not in conformity with the instructions (e). It was afterwards debated, before Sir T. Plumer, whether a power of sale and exchange could, in any form, be admitted, when his Honour said, that "The first point to be *considered was, in whom the pow- [*129] ers were to be vested; and it was clear that they were to be given to the tenants for life, if qualified, but if they should not be able to act, to the trustees. — Now, if the power of sale and exchange was to be given to the tenant for life without check or control, he could not say that it was a proper power; on the contrary, it might be very dangerous, as the tenant for life might for many reasons be induced to sell, when it might not be for the benefit of the remaindermen; nor was it usual to give him this power without the check of requiring the assent of the trustees. Take it the other way: if the tenant for life was disqualified, as by infancy, could the Court say it was a proper power to be given exclusively to the trustees?" And therefore his Honour thought the power of sale and exchange could not be introduced (a).

[27. **Settled Land Act.** — Now by the Settled Land Act, 1882 (b), the tenant for life (c), under the settlement is empowered to sell, exchange, enfranchise and concur in partitioning the settled land, and to grant building, mining and other leases; and by the Conveyancing and Law of Property Act, 1881 (d), the trustees of settlements made after the 31st Dec. 1881, are empowered (subject to any contrary intention expressed in the settlement), during the minority of any person beneficially entitled to the possession of the settled land, to manage the property and apply any income for the maintenance, education or benefit of the infant; and consequently powers for these purposes are not now usually inserted in settlements, and it is conceived that the Court

(e) *Brewster v. Angell*, 1 J. & W. 625.

(a) *Horne v. Barton*, Jac. 437.

[(b) 45 & 46 Vict. c. 38, ss. 3, 4, 6, *et seq.*]

[(c) The tenant for life under the Act is the person *beneficially* entitled

to possession, which includes receipt of the rents and profits; and by s. 58 the powers of a tenant for life are exercisable by various other limited owners therein enumerated.]

[(d) 44 & 45 Vict. c. 41, s. 42.]